

Court No. - 40

Case :- WRIT - C No. - 17563 of 2018

Petitioner :- Dharam Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Kunwar Ajay Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

On the request of learned counsel for the respondent put up on Monday (21.05.2018) to enable him to obtain instructions in the matter.

Put up on Monday (21.05.2018).

Order Date :- 17.5.2018

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Heard learned counsel for the petitioner and Sri Kesarwani, learned counsel for the respondent Electricity Department.

The challenge raised in this is to the citation of recovery dated 27th April, 2018 whereby certain electricity dues on account of an alleged theft after the provisional assessment is sought to be recovered.

The contention raised in paragraph no. 10 of the writ petition is that this entire process has been carried out without following the due procedure as prescribed under the U.P. Electricity Supply Code 2005 particularly Clause 6.8.

Learned counsel submits that neither the petitioner was ever put to notice nor any proceedings were carried out in accordance with the 2005 Code for making provisional assessment or even for final assessment. The citation of recovery therefore issued on the basis of a defective procedure cannot be sustained.

Learned counsel for the respondent electricity department submits that notices had been dispatched but in order to resolve the dispute the Executive Engineer shall decide the objection of the petitioner within a reasonable time as directed by this Court.

Consequently, in view of the aforesaid submissions raised, we direct the petitioner to file his objection before the respondent no.3 within ten days from today. The respondent no.3 shall examine the claim of the petitioner and proceed to pass an appropriate order within three weeks' thereafter.

The recovery proceedings initiated will abide by the orders to be passed by the Executive Engineer.

The writ petition is disposed of with the aforesaid directions.

Order Date :- 21.5.2018/M. ARIF